

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JAHPHIAH PETERS, an infant by ELESHA CUPIDORE,
his mother and natural guardian, and ELESHA
CUPIDORE, individually,

Index No.

Date Purchased:

Plaintiffs,

-against-

SUMMONS

Basis of venue is CPLR §504

THE CITY OF NEW YORK and JOHN DOE POLICE
OFFICERS 1-5, fictitious names used to identify presently
unknown NYPD servicemembers,

Defendants.

-----X

To the above-named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a Notice of Appearance, on the Plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
January 27, 2023

Defendants' Addresses:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Yours, etc.,

HELD & HINES, LLP

/s/ Philip Hines

Philip M. Hines, Esq.
Attorneys for Plaintiffs
2004 Ralph Avenue
Brooklyn, New York 11234
Tel: (718) 531-9700
Fax: (718) 444-5768
phines@heldhines.com

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JAPHIAH PETERS, an infant by ELESHA CUPIDORE, Index No.
his mother and natural guardian, and ELESHA
CUPIDORE, individually,

VERIFIED COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK and JOHN DOE POLICE
OFFICERS1-5, fictitious names used to identify presently
unknown NYPD servicemembers,

Defendants.

-----X

Plaintiffs, complaining of the defendants, by their attorneys, **HELD & HINES, LLP**,
alleges, upon information and belief, that:

1. Plaintiffs are resident of the State of New York, County of Richmond.
2. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK
(hereinafter “the City”), was and remains a municipal corporation organized and existing under
and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, the New York City Department of Education
(hereinafter “DOE”) was and remains a department and/or agency of the City.
4. At all times hereinafter mentioned, the New York City Police Department
(hereinafter “NYPD”) was and remains a department and/or agency of the City.
5. At all times hereinafter mentioned, the NYPD’s 71st Precinct, located at 421 Empire
Boulevard, Brooklyn, New York, was and remains under the operation, direction, supervision
and/or control of the City.

6. At all times hereinafter mentioned Defendants, JOHN DOE POLICE OFFICERS 1-5 (hereinafter “defendant officers”), were members of service of the NYPD and employed by Defendant City.

7. At all times hereafter mentioned the defendant officers were acting in their course of employment and under the color of law.

8. At all times hereafter mentioned, the Clara Barton High School, located 901 Classon Avenue, Brooklyn, New York, was and remains a public school in the New York City Department of Education school system.

9. At all times hereafter mentioned, the Clara Barton High School was and remains under the operation, direction, supervision and/or control of the City.

10. At all times hereafter mentioned, the Clara Barton High School was and remains under the operation, direction, supervision and/or control of Defendant DOE.

11. That on or about December 15, 2021, at approximately 2:00 PM, the infant plaintiff was attending school at the Clara Barton High School when he was suddenly detained and arrested by the defendant officers.

12. The infant plaintiff has Autism.

13. On or about said date, a female student at Clara Barton High School made unsubstantiated and wholly incredible allegations that the infant plaintiff had sexually assaulted her, such that no reasonable police officer would believe that the infant plaintiff had committed any crime let alone sexual assault of his classmate.

14. The defendant officers lacked reasonable suspicion to detain the infant plaintiff.

15. The defendant officers lacked probable cause or a warrant to arrest the infant plaintiff.

16. Upon arrest, the infant plaintiff was handcuffed, removed from the school, and taken to the 71st Precinct. The infant plaintiff's parents were not contacted prior to his arrest.

17. At the 71st Precinct, the infant plaintiff was handcuffed to a bench or other fixture in his cell.

18. The infant plaintiff was held in custody for thirty (30) hours, handcuffed to the aforesaid bench and/or cell the entire time, and then released without explanation, charges, or prosecution.

19. By virtue of the foregoing, Defendants did falsely arrest and imprison the infant plaintiff.

20. Because the defendant officers detained and arrested the infant plaintiff in front of three (3) students at the school, upon his return to school, the infant plaintiff was subjected to bullying, harassment, embarrassment, and other forms of retaliation by fellow students.

21. As a result of the foregoing, the infant plaintiff suffered, and continues to suffer, serious personal injuries including, but not limited to, bruising, lacerations and abrasions of his hands and wrists, emotional and psychological trauma, pain and suffering, embarrassment, fear, and all other damages.

AS AND FOR A FIRST CAUSE OF ACTION
Claims for Violations of Rights Secured by the
United States Constitution, Pursuant to 42 U.S.C. 1983

22. Plaintiffs repeat and re-allege each and every allegation set forth in the prior paragraphs as if fully set forth herein.

23. As alleged herein, Defendants did deprive the infant plaintiff of his rights, privileges and immunities secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution.

24. As alleged herein, Defendants detained, arrested, and imprisoned the infant plaintiff without a warrant, reasonable suspicion, probable cause, or other lawful justification; deprived the infant plaintiff of liberty without due process of law; subjected the infant plaintiff to unlawful search and seizure; subjected the infant plaintiff to cruel and unusual punishment; subjected the infant plaintiff to unnecessary and wanton infliction of pain; and did falsely detain, arrest, and imprison the infant plaintiff.

25. Because said defendants, while acting under color of state law, were deliberately indifferent to and did violate the infant plaintiff's clearly-established constitutional rights, Plaintiffs seek damages pursuant to 42 U.S.C. § 1983 and an award of attorneys' fees and costs pursuant to 42 U.S.C. § 1988.

26. In addition to the foregoing relief, Plaintiffs seek punitive damages against the defendant officers individually.

STATE LAW CLAIMS FOR RELIEF

27. A notice of claim setting forth the time, place, and manner in which the subject incident and injuries occurred was duly filed by the plaintiffs with defendant City of New York within ninety (90) days of the occurrence; that at least thirty (30) days have elapsed since the service of such notice; that adjustment or payment thereof has been neglected or refused; and this action has been commenced within one year and ninety days after the cause of action accrued.

28. On or about March 1, 2022, the plaintiffs duly served and filed with defendant City of New York a Notice of Claim setting forth the time, place, substance of claims, and description of injuries sustained by the infant plaintiff.

29. More than thirty (30) days have elapsed since the filing of the Notice of Claim with defendant City of New York and said defendant has neglected and/or refused to make an

adjustment thereof, although same was duly demanded.

30. A hearing pursuant to §50-h of the General Municipal Law was held on September 22, 2022 for both plaintiffs.

31. This action is commenced, including all applicable stays and tolls, within the applicable statute of limitations.

32. This action falls within one or more exceptions set forth in N.Y. C.P.L.R. § 1602.

AS AND FOR A FIRST CAUSE OF ACTION

Battery

33. Plaintiffs repeat and re-allege each and every allegation set forth in the prior paragraphs as if fully set forth herein.

34. The defendant officers' unlawful acts aforesaid against the infant plaintiff constituted harmful and offensive contact to the infant plaintiff's person, all of which were done intentionally by said defendants and without the infant plaintiff's consent.

35. As a direct and proximate result of the aforementioned battery, the infant plaintiff has sustained in the past, and will continue to sustain in the future, physical injury pain and suffering, serious and severe psychological and emotional distress, mental anguish, embarrassment, and humiliation.

36. By reason of the foregoing, the infant plaintiff is entitled to an award of compensatory damages in an amount exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

37. By reason of the foregoing, the infant plaintiff is entitled to an award of punitive damages in an amount the jury would find fair, just and appropriate to deter said defendants and others from future similar conduct, while considering the depraved, malicious, fraudulent, and

oppressive intent to injure the infant plaintiff, in conscious disregard for his rights and safety.

AS AND FOR A SECOND CAUSE OF ACTION

Assault

38. Plaintiffs repeat and re-allege each and every allegation set forth in the prior paragraphs as if fully set forth herein.

39. The defendant officers' unlawful acts against the infant plaintiff created a reasonable apprehension in the infant plaintiff of immediate harmful or offensive contact to his person, all of which were done intentionally by the defendant officers and without the infant plaintiff's consent.

40. As a direct and proximate result of the aforementioned assault, the infant plaintiff has sustained in the past, and will continue to sustain in the future, physical injury pain and suffering, serious and severe psychological and emotional distress, mental anguish, embarrassment, and humiliation.

41. By reason of the foregoing, the infant plaintiff is entitled to an award of compensatory damages in an amount exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

42. By reason of the foregoing, the infant plaintiff is entitled to an award of punitive damages in an amount the jury would find fair, just and appropriate to deter said defendant and others from future similar conduct, while considering the depraved, malicious, fraudulent, and oppressive intent to injure the infant plaintiff, in conscious disregard for his rights and safety.

AS AND FOR A THIRD CAUSE OF ACTION

False Arrest and False Imprisonment

43. Plaintiffs repeat and re-allege each and every allegation set forth in the prior

paragraphs as if fully set forth herein.

44. As alleged throughout the Complaint, the defendants unlawfully detained the infant plaintiff without reasonable suspicion; unlawfully arrested the infant plaintiff without probable cause or warrant; and unlawfully imprisoned the infant plaintiff.

45. The defendants' aforesaid acts were not reasonable under the circumstances.

46. The defendants' aforesaid acts were not justified, privileged, or warranted under the circumstances and constituted false detention, false arrest, false imprisonment, and unreasonable and unnecessary force.

47. As a direct and proximate result of the aforementioned assault, the infant plaintiff has sustained in the past, and will continue to sustain in the future, physical injury pain and suffering, serious and severe psychological and emotional distress, mental anguish, embarrassment, and humiliation.

48. By reason of the foregoing, the infant plaintiff is entitled to an award of compensatory damages in an amount exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

49. By reason of the foregoing, the infant plaintiff is entitled to an award of punitive damages in an amount the jury would find fair, just and appropriate to deter said defendant and others from future similar conduct, while considering the depraved, malicious, fraudulent, and oppressive intent to injure the infant plaintiff, in conscious disregard for his rights and safety.

AS AND FOR A FOURTH CAUSE OF ACTION
Negligence

50. Plaintiffs repeat and re-allege each and every allegation set forth in the prior paragraphs as if fully set forth herein.

51. The defendants were negligent in the instance in that they did not have lawful cause, justification, or authority to detain, arrest, or imprison the infant plaintiff.

52. The negligent and wrongful acts and omissions by defendants included, but was not limited to, their failures to act in the instances aforesaid as a reasonably prudent officer would in the same or similar circumstances; in that they engaged in conduct that unreasonably jeopardized the freedom, property, and life of the infant plaintiff; in that they failed to reasonably inquire and/or investigate a complaint made against the infant plaintiff prior to detaining, arresting, and imprisoning him; in that they failed to take cognizance that the infant plaintiff is autistic; in that they failed to take reasonable actions and precautions in the instance; in that they failed to obtain the necessary information and relied upon incomplete and/or inaccurate information in detaining and arresting the infant plaintiff; and acted without caution or care for the safety and rights of the infant plaintiff and/or the outcome of their actions.

53. The defendants were grossly negligent, negligent, careless, reckless, inattentive, and/or otherwise proceeded in an unreasonably hazardous manner without caution or care for the safety and civil rights of the infant plaintiff; failed to obey their own protocols, rules, standards, directives, and training materials governing the aforesaid incident; failed to take reasonable precautions to maintain and preserve the rights and safety of the infant plaintiff in the instance; and in being otherwise negligent, reckless and careless in the instances aforesaid.

54. Defendants negligently discharged their duties and thereby caused the infant plaintiff to sustain the aforementioned injuries and deprivations.

55. Defendant City of New York was negligent, careless, and reckless in the hiring, screening, training, retention, and supervision of the involved officers in that said employees lacked the character, mental capacity, experience, ability, maturity, sensibility and/or intelligence

to be and remain employed by the City of New York; in failing to exercise due care and caution in its hiring, screening, training, retention, and supervision practices; in failing to suspend and/or terminate employees when such action was either proper or required; and its failure to enforce the laws of the United States of America, the State of New York, and the Charter, rules and regulations of the City of New York is evidence of the reckless lack of cautious regard for the rights of the public in general and the infant plaintiff in particular and exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

56. Defendant City of New York knew or should have known in the exercise of reasonable care the propensities of its involved employees to engage in the wrongful conduct alleged herein.

57. The unlawful detention, arrest, and confinement of the infant plaintiff set forth above was the reasonably foreseeable consequence of defendant City of New York's negligent conduct.

58. Due to the negligence of the defendants, the infant plaintiff suffered serious harm and was injured.

59. As a direct and proximate result of the aforementioned assault, the infant plaintiff has sustained in the past, and will continue to sustain in the future, physical injury pain and suffering, serious and severe psychological and emotional distress, mental anguish, embarrassment, and humiliation.

60. By reason of the foregoing, the infant plaintiff is entitled to an award of compensatory damages in an amount exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

61. By reason of the foregoing, the infant plaintiff is entitled to an award of punitive

damages in an amount the jury would find fair, just and appropriate to deter said defendant and others from future similar conduct, while considering the depraved, malicious, fraudulent, and oppressive intent to injure the infant plaintiff, in conscious disregard for his rights and safety.

AS AND FOR A FIFTH CAUSE OF ACTION
Negligent and Intentional Infliction of Emotional Distress

62. Plaintiffs repeat and re-allege each and every allegation set forth in the prior paragraphs as if fully set forth herein.

63. As set forth above, the defendants' aforesaid acts and omissions were intentional, malicious, and excessive, and served no reasonable or legitimate penological interest.

64. As set forth above, the defendants' aforesaid acts and omissions were negligent and served no reasonable or legitimate penological interest.

65. Due to the aforesaid acts of the defendants, the infant plaintiff suffered extreme emotional distress.

66. The intentional, reckless and/or negligent acts of the defendants constituted misconduct of an egregious and outrageous nature that exceeds all bounds usually tolerated by society.

67. As a direct and proximate result of the foregoing, the infant plaintiff suffered severe psychological and emotional trauma in an amount to be determined at trial.

AS AND FOR A SIXTH CAUSE OF ACTION
Respondeat Superior

68. Plaintiffs repeat and re-allege each and every allegation set forth in the prior paragraphs as if fully set forth herein.

69. At all times pertinent hereto, the defendant officers were acting within the scope of

their employment as officers of the New York City Police Department.

70. As the employer of the defendant officers and their supervisory personnel, defendant City of New York is liable under the doctrine of *respondeat superior* for the intentional and negligent torts of these employees, which were committed within the scope of their employment.

71. As a direct and proximate result of the foregoing, the infant plaintiff was injured and damaged in an amount to be determined at trial.

AS AND FOR A SEVENTH CAUSE OF ACTION
Punitive Damages

72. Plaintiffs repeat and re-allege each and every allegation set forth in the prior paragraphs as if fully set forth herein.

73. The acts and omissions of the defendant officers were willful, wanton, malicious, and oppressive and were motivated by a desire to discharge their purported duties without regard for the freedom, life, well-being, property, and constitutional rights of the infant plaintiff and were based on a lack of concern for same. Such acts warrant an award of punitive damages.

AS AND FOR A SEVENTH CAUSE OF ACTION
On Behalf of Plaintiff Elesha Cupidore

74. Plaintiffs repeat and re-allege each and every allegation set forth in the prior paragraphs as if fully set forth herein.

75. Plaintiff, ELESHA CUPIDORE, asserts each of the aforesaid claims, to the extent applicable, on her own behalf.

76. As a result of the defendants acts and omissions alleged heretofore, Plaintiff, ELESHA CUPIDORE, suffered pecuniary losses and was caused to incur medical and other

necessary expenses related to the infant plaintiff.

77. As a result of the defendants acts and omissions alleged heretofore, Plaintiff, ELESHA CUPIDORE, suffered the loss of services and enjoyment of her son, the infant plaintiff.

WHEREFORE Plaintiffs seeks an award of (a) compensatory damages in an amount to be determined at trial, but in any event in an amount that exceeds the jurisdictional limits of all lower courts, against all defendants; (b) punitive damages against each defendant officer in an amount to be determined at trial; (c) attorneys' fees, costs, and disbursements pursuant to law; and (d) such other and further relief as this Court deems just and proper.

Dated: Brooklyn, New York
January 27, 2023

Yours, etc.,

HELD & HINES, LLP

/s/ Philip Hines

Philip M. Hines, Esq.
Attorney for Plaintiffs
2004 Ralph Avenue
Brooklyn, New York 11234
(718) 531-9700
phines@heldhines.com

ATTORNEY VERIFICATION

PHILIP HINES, an attorney duly licensed to practice in the courts of the State of New York, hereby affirms the following under penalties of perjury:

That I am a member of the law firm of HELD & HINES, L.L.P., attorneys for the plaintiffs in the within action; that I have read the foregoing VERIFIED COMPLAINT and know the contents thereof; and that the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters, I believe them to be true. The reason this Verification is made by me and not by the plaintiffs is that said plaintiffs reside outside of the County in which your Affirmant's office is located.

The grounds of my belief as to all matters stated upon my own knowledge are as follows: the records and reports contained in the plaintiffs' file.

/s/ Philip Hines

Philip M. Hines, Esq.

Affirmed to January 27, 2023

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JAHPHIAH PETERS, an infant by ELESHA CUPIDORE,
his mother and natural guardian, ELESHA CUPIDORE, Index No.
individually,

Plaintiffs,

-against-

THE CITY OF NEW YORK and JOHN DOE POLICE
OFFICERS 1-5, fictitious names used to identify presently
unknown NYPD servicemembers,

Defendants.

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SUMMONS AND VERIFIED COMPLAINT

HELD & HINES, LLP
Attorneys for Plaintiffs
Office & Post Office Address
2004 Ralph Avenue
Brooklyn, New York 11234
(718) 531-9700

Signature (Rule 130-1.1-a)

/s/ Philip Hines

Philip M. Hines, Esq.